

Federal Maritime Commission

Docket No. 19-09

VERTERRA LTD.

COMPLAINANT,

V.

D.B. GROUP AMERICA LTD. and

D.B. GROUP INDIA LTD.

RESPONDENTS.

MOTION TO DISMISS, OR IN THE ALTERNATIVE, MOTION TO STAY THE PROCEEDINGS

Respondents D.B. GROUP AMERICA LTD. and D.B. GROUP INDIA LTD., by and through their undersigned counsel of record, hereby move the Federal Maritime Commission ("Commission" or "FMC") for an Order pursuant to Rule 12(b)(6) of the Federal Rules of Civil Procedure, as permitted by Rule 12 of the Commission's Rules of Practice and Procedure, 46 C.F.R. § 502.12, to dismiss the Verified Complaint of Complainants VerTerra Ltd., in its entirety with prejudice, or in the alternative to stay the proceedings during the pendency of the prior filed action in New York state Court, and to provide any further relief as the Commission deems just, reasonable and proper.

Undersigned counsel, per 46 C.F.R. § 502.2 (f)(3), certifies that this e-filed copy is a true and correct copy of the paper original, and that the paper signed original and five (5) copies are being filed with the Secretary of the Commission.

Respectfully submitted this, the 13th day of January 2020.

REISMAN, RUBEO & ALTMAN, LLP



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